9070 _ Schedule 3

Confidential & Proprietary

SERVICE SCHEDULE NO. 3 - WAREHOUSE DISTRIBUTION SERVICES

This Service Schedule No. 3 for Warehouse Distribution Services ("Schedule") is entered into this 6th day of November (the "Effective Date") and is attached to and made part of that certain Master Services Agreement dated November 6, 2006 (the "MSA") by and between UPS Supply Chain Solutions, Inc. ("SCS") and Actavis, Inc., ("Client"). In the event of a conflict between any of the documents specified below and this Schedule, this Schedule will control.

1. **Structure of this Service Schedule.** SCS will perform for Client the warehouse distribution services specified in this Schedule (the "Services"), at one or more facilities listed in Exhibit C (each a "Facility"), in accordance with this Schedule and its Exhibits and the documents specified below, each of which is incorporated into this Schedule by reference.

Exhibit A – Statement of Work
Exhibit B – Fees
Exhibit C – Operating Parameters
Exhibit D – Termination Costs
Exhibit E – Product List
Exhibit F – Key Performance Indicators

2. **Term and Termination.**

2.1 Term. The Initial Term of this Schedule shall commence on the Effective Date and shall continue up to and including November 5, 2009 ("Initial Term"), unless earlier terminated in accordance with the MSA. Thereafter, this Schedule will automatically renew for successive one-year renewal terms, unless either Party gives the other Party written notice of non-renewal at least one hundred twenty (120)days prior to the expiration of the then-current term. Notwithstanding the foregoing, in the event that SCS continues to provide the Services to Client following the expiration or termination of this Schedule, and the Parties fail to enter into a written extension of this Schedule, then this Schedule (except that the Fees may be adjusted by SCS in its sole discretion) shall remain in effect on a month-to-month basis after the expiration or termination date until terminated in writing by either Party upon thirty (30) days prior written notice.

2.2 Termination Costs. If this Schedule is terminated (i) by SCS due to Client's breach, failure to make payments when due, or insolvency or (ii) by Client for its convenience, Client shall pay SCS the termination costs, if any, specified in Exhibit D.

2.3 Transition Assistance. In connection with the termination or expiration of this Schedule, the Parties will mutually agree in advance with respect to the actions that SCS will undertake as part of the termination assistance and agree that SCS will undertake all such actions at Client's sole expense. Transition Assistance includes, but may not be limited to, (i) performance of a complete physical inventory of all Products and other Client-owned materials and equipment, if any, (ii) packaging such Products and other Client-owned materials and equipment, and (iii) making such Products and other Client-owned materials and equipment available on the Facility's shipping dock for Client's handling, pickup and transportation at Client's sole expense. Client shall remain liable for all storage charges accrued up until such time as the Products are removed from the Facility.

3. **Fees.**

3.1 Payment Terms. Fees will be as set forth in Exhibit B and will be administered in accordance with Exhibit B. Client shall pay all invoices within fifteen (15) days from date of the invoice.

3.2 Annual Fees Adjustment. After the Initial Term has expired and thereafter on the anniversary of the renewal term, all Fees shall be subject to an annual adjustment equal to the greater of three percent or the same percentage increase as reflected in the most recent publication of the Half-Year Consumer Price Index for All Urban Consumers, U.S. All Items, Not Seasonally Adjusted (using 1982-1984 base period) ("CPI-U"), as published by the United States Department of Labor, Bureau of Labor Statistics, which may be viewed at <http://stats.bls.gov/cpi/home.htm>. In the event the CPI-U is discontinued, SCS may designate another index for purposes of adjustments, provided that such substitute index shall not produce adjustments substantially different from those that were produced under the CPI-U. SCS will notify Client in writing of adjustments to the Fees at least thirty (30) days prior to implementing the adjusted Fees.

4. **Liability for Loss or Damage to Products Stored by SCS.**

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4.1 Definitions.

4.1.1 "Throughput" shall mean the number of Products received and shipped divided by two (2), between successive Determination Dates, or if within the first year of the Effective Date, then such first year.

4.1.2 "Replacement Cost" shall mean Client's actual cost to replace a Lost Product, i.e., the reasonable and customary cost incurred by Client to purchase and transport the Product from its supplier to the Facility; provided, however, that the Replacement Cost shall not include margin, markup or storage fees. Within thirty (30) days of the Effective Date and at least quarterly thereafter, Client shall provide to SCS appropriate documentation verifying the Replacement Cost of each Product.

4.1.3 "Average Replacement Cost" shall mean the weighted average of the Replacement Costs of all Lost Products.

4.1.4 "Determination Date" shall mean the yearly anniversary of the Effective Date upon which SCS's liability to Client, if any, for Lost Products and Damaged Products is determined; provided however, that if this Schedule expires or is terminated prior to such Determination Date, the revised Determination Date shall be the date of termination or expiration of this Schedule.

4.1.5 "Shrinkage Allowance" shall mean 0.2% of Throughput as of the Determination Date. The Parties have agreed to a Shrinkage Allowance because both Parties recognize that it is inevitable that a certain amount of Products will be lost or damaged in the course of storage and handling whether the Products are stored by SCS or by the Client at its own locations using its own employees.

4.1.6 "Lost Products" shall mean those Products, except for controlled substances, that should be warehoused on the Determination Date according to the Book Inventory Report, but that have been lost due to SCS's negligence or are otherwise unable to be located. Lost Products shall not include Damaged Products, concealed shortages, or Products shipped in error to Client's location or to a location designated by Client.

4.1.7 "Damaged Products" shall mean those Products warehoused on the Determination Date that are destroyed or damaged due to SCS's negligence such that they cannot be sold.

4.1.8 "Book Inventory Report" shall mean the report of those Products that should be warehoused as of the Determination Date based on (i) Beginning Inventory, i.e. the Products that were warehoused based on the Book Inventory Report as of the previous Determination Date or, if during the first year, then the Effective Date, plus (ii) Products received as evidenced by an authorized signature on the transportation carrier's waybill, since previous Determination Date or, if during the first year, then the Effective Date, less (iii) Products shipped since the previous Determination Date or, if during the first year, then the Effective Date. The Book Inventory Report will be generated by SCS using its warehouse inventory management systems, regardless of whether Client's inventory system is also used in connection with the Services.

4.1.9 "Repair Cost" shall mean the lesser of the cost to repair the Damaged Product or the Replacement Cost of the Damaged Product.

4.1.10 "Net Value of Inventory Adjustments" shall mean as of a Determination Date the sum of all the inventory adjustments for unaccounted for Products, based on the number of units, that are made by SCS in all Facilities during its cycle count process between successive Determination Dates or, if during the first year of the Effective Date, then during such first year. SCS will maintain a cumulative record of inventory adjustments completed.

4.1.11 "Excess Loss" shall mean the number of Lost Products multiplied by the Average Replacement Cost.

4.1.12 "Physical Inventory" shall mean a physical inventory of the Products. Any Physical Inventory will be conducted in a manner mutually acceptable to the Parties. If Client requests SCS to conduct such a Physical Inventory, SCS will perform the Physical Inventory at Client's sole expense.

4.2 Calculation of Liability for Lost Products and Damaged Products.

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4.2.1 SCS shall be liable for Lost Products or Damaged Products in excess of the Shrinkage Allowance while the Products are in its care, custody and control due to its negligent acts or omissions, except that which is (i) below the Shrinkage Allowance; (ii) caused by any defects in the packaging or manufacture of such Products; (iii) attributable to carriers (contract or otherwise) failing to deliver the full shipment of expected Products to SCS or otherwise caused by the acts or omissions of such carriers; (iv) delivered to SCS in damaged condition and such damage was reported to Client; (v) attributable to concealed damage; (vi) a result of the negligence or intentional misconduct of Client or any of its employees, agents or subcontractors, (vii) due to third-party theft; unless SCS has not employed current, industry standard security measures, or (viii) caused by an event of Force Majeure.

4.2.2 On or about the Determination Date, SCS will calculate the Net Value of Inventory Adjustments.

4.2.3 If the Net Value of Inventory Adjustments is greater than the Shrinkage Allowance, then SCS, in accordance with this Schedule, will pay Client, subject to an annual limitation of $500,000, the Excess Loss for Lost Products and an amount equal to the Repair Cost for each Damaged Product, as appropriate, within thirty (30) days of mutual agreement.

4.3 Lost Products Later Found. If any Lost Products for which a payment has been made to Client are found or otherwise accounted for, Client shall promptly refund to SCS the amount of any such payment upon written notice from SCS, and SCS will return such Products to the Client, unless such Lost Products have gone into short date, have expired, or are not saleable.

5. Notice of Loss or Damage. SCS will promptly notify Client of any loss or damage to Goods that are delivered to the Facility after discovery of same by SCS and will provide reasonable cooperation to Client to address the disposition of such Goods.

6. Waiver of Subrogation. Client waives its rights of subrogation on behalf of its insurers for any loss or damage to Products in excess of the liability limits set forth in Section 4.

7. Work Instructions ("WI"). Client specific Work Instructions will be developed to outline further mutually agreed upon processes and service standards on or before January 1, 2007, and approved in writing by Client's Quality Assurance and a Quality Assurance Representative from SCS. In the event of a conflict between this Schedule and the WI, the terms of this Schedule shall control.

8. Client's Customers. Client will communicate to their customers that SCS will verify the license of Client's customer prior to Product shipment.

9. Products. Descriptions of the Products to be handled are listed on Exhibit E. The attached Exhibit E shall be updated as appropriate to reflect any change in Products. SCS shall not receive any new product for storage until an amended Exhibit E has been signed by the Parties and is attached to this Schedule.

9.1 Client is responsible for all product testing and control over Quality Assurance ("QA") hold and release of Product. Product received in a Quarantined status from Client, may only be released from SCS inventory with a Certificate of Release from the Client's designated Quality Assurance Representative.

9.2 Client is fully and solely responsible for ensuring that the Products comply with all federal, state, local and other laws and regulations with respect to safety, labeling, quality assurance and advertising. Client is responsible for notification to the FDA of any changes concerning the storage and distribution of the product.

9.3 Client is responsible for specifying and validating temperature sensitive packaging and other storage conditions as well as packaging protocols as necessary.

10. Recall Responsibilities. Client will handle all discussions with regulatory agencies regarding manufacturing defects or safety issues related to any Product and will be solely responsible for deciding the necessity, scope, and procedures for any Product recall. SCS will support Product recalls based on the Ad-Hoc rates stated in Exhibit B.

10.1 Client will be responsible for notifying SCS of any recalls or market withdrawals of their products to be handled by SCS.

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10.2 Client will be responsible for drafting product recall customer communications. Client is responsible for all recall communications to customer. Client can request in writing for SCS to perform the recall customer communications, and negotiate the service fee based on handling requirements. No amendment to this schedule is required for this service.

11. **Client Information Systems (IT).** If the Services under this Schedule require SCS to use Client's system and it is a system requiring validation, i.) Client will provide SCS a copy of the system's Validation Report, and ii.) At Client's expense, Client will provide verification of the use of that system in any SCS Facility.

12. **Notices.** In addition to the requirements of the Notices provision in the MSA, any notice required under this Schedule shall be directed to the following individuals:

To SCS: UPS Supply Chain Solutions, Inc.
Attn:

To Client: Actavis, Inc.
Attn:

13. **Survival.** The following provisions of this Schedule will survive its expiration or termination: Termination Costs, Transition Assistance, Liability for Loss or Damage to Products Stored by SCS, Notice of Loss or Damage, and Waiver of Subrogation.

IN WITNESS WHEREOF, the Parties hereto have caused this Schedule to be executed by their duly authorized representatives as of the Effective Date.

UPS SUPPLY CHAIN SOLUTIONS, INC.
"SCS"

Marcia B. Hobby
Signature

Marcia B. Hobby
Printed Name

Coordinator, Global Contracts
Title

11-09-2006
Date

ACTAVIS, INC.
"CLIENT"

Signature

Steinthor Palsson
Printed Name

Executive Vice Presidents Operations
Title

November 6, 2006
Date

REVIEWED LEGAL DEPT.

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EXHIBIT A - STATEMENT OF WORK
TO SERVICE SCHEDULE NO. 3 - WAREHOUSE DISTRIBUTION SERVICES

1. **Products**

Products to be stored and handled pursuant to this Schedule are indicated in Exhibit E.

2. **Specialized Handling.** Hazardous Materials or Other Regulated Products will not be accepted for handling and storage under this SOW unless a separate service schedule expressly authorizing such has been executed by the Parties.

Unless specified in this Exhibit or the Operating Parameters, SCS shall not be required to store Products requiring a special environment, including but not limited to air-conditioned, cool, chilled, or frozen environments, or high value cages. Products will be stored in the general storage area in ambient, (59-86 degrees Fahrenheit), warehouse temperatures.

3. **Training.** SCS shall train its personnel to perform standard warehouse logistics Services with respect to the Products. Customer shall provide SCS with training materials and applicable reference manuals relating to any specialized training for processes or systems to be provided to Customer under this Statement of Work (SOW) which are different from standard warehouse logistics services.

4. **Operating Parameters.** As of the Effective Date, the Facilities and warehouse space are those as listed on Exhibit C. The warehouse space within a Facility available to Customer from time to time for the storage of the Products shall be referred to as the "Storage Area."

5. **Hours of Operation.** Facility hours of Operation for warehouse Services are defined in the Operating Parameters. Business Day is defined as Monday through Friday, excluding Holidays ("Business Day"). US Holidays are: Memorial Day, 4th of July, Labor Day, Thanksgiving, Day after Thanksgiving, Christmas Day, New Year's Eve, New Year's Day ("Holidays").

6. **Access to Storage Area.** Only individuals authorized by SCS or Customer shall be permitted access to the Storage Areas, provided however, that Customer must provide SCS reasonable advance notice prior to such access, and provided further, that any such individual must agree to comply with the security provisions applicable to such Facility. Authorization by Customer for Customer personnel shall be controlled through an approved access list provided to SCS by Customer.

7. **Customer Designated Contact.** Customer will provide the name, job title, and contact information, to include telephone numbers (business, cell phones, facsimile, pager numbers, etc.) of a designated manager within Client's organization to serve as continuously available liaison with SCS for communication of all reporting and issue escalation to Customer. ("Customer Designated Contact"). If there is any change in the Designated Contact, Customer shall promptly submit the above information to SCS by facsimile or e-mail.

8. **Equipment.** SCS will provide all required general purpose equipment necessary to perform the Services, except that any special, customized or unique equipment needed to perform the Services shall be provided by Customer and maintained at Customer's sole expense.

9. **Products Master File.** The inventory system will be SCS's Warehouse Management System ("WMS"). Prior to the initial shipment of any Products to a Facility, Customer will provide SCS with a master list of all Products that are to be handled pursuant to this SOW. SCS will keep the information contained on such list in a file in its WMS (the "Master File"). Customer will provide SCS with the information needed to update the Master File, including all new additions to the Products to be handled pursuant to this SOW and any changes to information relating to Products on the Master File by a mutually agreed upon method.

10. **Incoming Product Quality Assurance ("QA").** Client is responsible for all control over QA hold and release of Product. Client will provide electronic pedigree documents with inbound receipts if required by regulations.

11. **Information System.** SCS will use the Warehouse Management System ("WMS") for inventory management and Client customer Services. On request, SCS has the ability to forward reports via e-mail. If e-mail reporting is requested, any manipulation of the report data by Client, and subsequent reporting discrepancies caused thereby, are the responsibility of Client. EDI interfaces included in pricing are defined in Exhibit C of Service Schedule 3. If requested, SCS can provide additional EDI interface capability to Client's systems or to the Client's customers at the Information Services rates set forth in Exhibit B. The cost to develop additional EDI will be quoted by SCS on request. Client will receive standard WMS reporting. If requested, report modifications or new reports can be provided by SCS, subject to the Information Services rates set forth in Exhibit B.

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12. **Client Service Support.** SCS will provide support to Client's warehouse operations as needed to facilitate the Services. For regulated products, SCS will maintain a name and address database of all Clients' customers. SCS client service support will provide reporting to Client.

13. **Product Delivery Requirements.** Client shall arrange for Products to be delivered to the Facility in a segregated manner, free from contamination, properly marked and packaged for handling. Any special delivery requirements are set forth in the Work Instructions ("WI"s). At or prior to delivery of the Products to any Facility, Client shall provide to SCS a manifest indicating the Products to be tendered for storage, with any special instructions, including but not limited to the applicable material safety data sheets (MSDS), concerning storage, services, accounting, segregation or any other requirements relating to the Products.

14. **Warehouse Services.** Services to be performed pursuant to this Schedule are as follows:

14.1 Product Receipt. SCS will receive all delivered Products, including stock from Client's manufacturer.

- 14.1.1 Unloading, counting, checking and putting away of stock.
- 14.1.2 Recording products, quantities, lot numbers received and expiration dates noting visual damages, shortages and overages.
- 14.1.3 Data entry of warehouse receipts into computer system.
- 14.1.4 Special handling such as receiving unmarked cartons or breaking down pallets or cartons on receipt is subject to an assessorial labor charge.
- 14.1.5 Transmission of receipt transaction to Client and stock putaway in accordance with date expiration methodologies
- 14.1.6 The initial receipt and putaway of Products received at the start-up will be billed per the accessorial labor rates of Exhibit B section 6.1.

14.2 Product Storage. SCS will provide storage as required in accordance with Client's WI.

- 14.2.1 Controlled ambient storage will be provided.
- 14.2.2 SCS will track product by lot number and expiration date.

14.3 Inventory Management.

- 14.3.1 SCS will maintain a cycle count program in accordance with SCS's standard practice. SCS will maintain records of all counts taken and, if requested, provide monthly reporting to Client on results achieved.
- 14.3.2 SCS will track lot number and expiration date, and identify product receipts and orders by lot number and expiry date where applicable.
- 14.3.3 SCS will support Client's product recall procedures and subject to an assessorial labor charge.
- 14.3.4 SCS can provide automatic lot selection, e.g. FEFO, shortest expiry date, specific lot selection, as requested.
- 14.3.5 SCS will perform physical inventory at Client's request: Forty-eight (48) hour advanced notice is required and Client will be billed for the labor hours.

14.4 Damaged or Expired Products. Client will be notified of damaged or expired Product. Damaged or expired Product will be returned to manufacturer or sent out to an authorized destruction company. The agreement with the authorized destruction company will be between Client and the destruction company.

14.5 Order Processing. SCS will provide pick, pack and shipping package labeling Services.

- 14.5.1 Excluding rush or emergency orders, orders will typically be received 24 hours in advance of required ship date.
- 14.5.2 All orders will be received electronically except when shipping DEA Controlled II products., Upon receipt of the DEA 222 form, orders for the DEA Controlled II product will be entered manually.
- 14.5.3 SCS will pick and pack carton quantities, and include bill of lading.

14.6 Product Shipment.

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14.6.1 Client orders are made available to the warehouse on a daily basis.

14.6.2 Orders are prepared according to WI.

14.7 Routing. SCS will route shipment using the default carriers per Exhibit C.

14.8 Backorders.

14.8.1 Client will not send SCS orders with a known backorder condition.

14.8.2 Orders cancelled by SCS will be transmitted to Client as a voided order shipment confirmation

14.9 Returns. SCS will provide the management of returned Product, according to Client's WI. SCS will:

14.9.1 Receive returned Product into segregated area.

14.9.2 Provide visual inspection of incoming returns for quantity discrepancies or damage.

14.9.3 Transfer of returned Product back to Client.

14.9.4 Contact Client to obtain disposition instructions, and if requested by Client, arranging the destruction of returned Product with Clients' written authorization at Clients sole expense.

14.9.5 Store Product destined for destruction, subject to storage Fee.

14.9.6 Process returns which were not originally shipped by SCS, subject to assessorial labor Fee.

14.10 Packaging. Should Client require SCS to purchase packaging supplies, Client will identify the components required and packing specifications. Client is responsible for validation of packaging specifications. SCS will bill Client monthly for all packaging supplies utilized.

15. Transition Assistance. In connection with the termination or expiration of this SOW, SCS will:

15.1 Return Client's customer information database to Client.

15.2 Perform a complete physical inventory of all Client's Product. SCS's standard physical inventory Fee applies to such physical inventory.

15.3 Package the Product and other materials of Client and make same available on the shipping dock for pickup. The outbound transaction Fee applies on all Products to be removed from the Facility.

15.4 Client will arrange for pickup and transportation of all such Product and materials, in accordance with Section 2 of Service Schedule No. 1 by the date of such termination or expiration.

15.5 Provide Transition assistance in accordance with Section 2 of Service Schedule No. 1.

15.6 SCS will retain records as required by regulatory agencies.

16. Customer Information Database. SCS will maintain a name and address database of all Clients' customers. Special projects for extraordinary changes to customer database information, or other request outside the scope of the standard database maintenance Services, are subject to an assessorial Fee for the required labor hours.

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EXHIBIT B - FEES
TO SERVICE SCHEDULE NO. 3 - WAREHOUSE DISTRIBUTION SERVICES

1. Upfront Fee $83,783.00

SCS will invoice Client and Client shall pay the Upfront Fee in accordance with Section 3 of this Schedule.

Travel expenses related to service implementation are not included in this Fee and will be invoice as incurred. Travel expense is charged back at cost.

2. Fixed Monthly Charge.

The monthly charge during the term of this Schedule is $51,667.00 fixed Fees per month.

3. Variable Charges.

3.1 Inbound Handling Charge

3.1.1 DEA C-II controlled substance products will be billed at $0.40 per carton

3.1.2 Non-C-II products will be billed at $12.00 per pallet

3.2 Storage Charge

3.2.1 DEA C-II controlled substance products will be billed at $85.00 per pallet per month.

3.2.2 DEA C-III, C-IV and C-V controlled substance products will be billed at $19.00 per pallet per month

3.2.3 Non-controlled substance products will be billed at $17.00 per pallet per month

3.3 Customer Service Charge

3.3.1 EDI Order will be billed at $0.08 per order line.

3.3.2 Manual Orders will be billed at $1.76 per order line.

3.4 Outbound Handling Charge

3.4.1 DEA C-II controlled substance products will be billed at $0.72 per carton.

3.4.2 DEA C-III, C-IV and C-V controlled substance and non-controlled products will be billed at

$0.65 per carton
$8.60 per single SKU, full pallet

3.5 The minimum Expected Fees, which include all variable charges per Section 3 above, are forecast based on the Operating Parameters per Exhibit C of this Schedule. The Expected Fees are based on 75% of the inbound and outbound volume and 80% of the storage volume plus the fixed monthly charge.

3.6 If the actual quarterly throughput for a given quarter falls below 75% of the inbound and outbound volumes and 80% of the storage volume as determined in Exhibit C of this schedule for a quarter, a minimum quarterly variable charge, equal to 75% of the projected inbound and outbound volumes and 80% of the projected storage volume at the variable rates will be assessed.

Minimum Expected Variable Fees

Inbound Cases:

The expected monthly inbound cases of DEA C-II controlled substance products for Year 1 is 18,285.
18,285 cases/month x $0.40 /case x 75% = $5,486

The expected monthly inbound pallets of DEA C-III, C-IV and C-V controlled substance and non-controlled products for Year 1 is 1,255.
1,255 pallets/month x $12.00 /case x 75% = $11,292

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Customer Service:

The expected monthly manually entered order lines is of DEA C-II controlled substance products for Year 1 is 1,642.
1,642 lines/month x $1.76 /line x 75% = $2,168

The expected monthly EDI order lines is of DEA C-III, C-IV and C-V controlled substance and non-controlled products for Year 1 is 29,508
29,508 lines/month x $0.08 /line x 75% = $1,770

Outbound Cases:

The expected monthly outbound cases of DEA C-II controlled substance products for Year 1 is 18,285.
18,285 cases/month x $0.72 /case x 75% = $9,784

The expected monthly outbound cases of DEA C-III, C-IV and C-V controlled substance and non-controlled products for Year 1 is 1 258,766
258,766 cases/month x $0.52 /case x 75% = $126,148

The expected monthly outbound pallets of non-controlled products for Year 1 is 447
447 pallets/month x $8.60 /pallet x 75% = $2,886

Pallet Storage:

The expected monthly stored pallets of DEA C-II controlled substance products for Year 1 is 76
76 pallets/month x $85.00 /pallet x 80% = $5,168

The expected monthly stored pallets DEA C-III, C-IV and C-V controlled substance products for Year 1 is 752
752 pallets/month x $19.00 /pallet x 80% = $11,430

The expected monthly stored pallets of Non-controlled substance products for Year 1 is 5,013
5,013 pallets/month x $17.00 /pallet x 80% = $68,177

Total Minimum Variable Expected fees are $244,460 per month

4. Value Added Network ("VAN") Charges:

Client is responsible for their VAN charges. VAN charges for orders is a variable monthly charge based on all VAN order volume.

5. Labor Rates.

5.1 Accessorial labor for a full physical inventory on request, visual inspection, and special projects or additional work or special handling that is not within the scope of Services: All value added services can be performed at ad-hoc rates and must be agreed upon by both parties prior to activity. Labor rates during normal working hours are

5.1.1 Warehouse Labor

Weekdays: $23.05 per hour
Operation Supervisor: $50.00 per hour
Initial inventory movement into SCS Facility $22.40 per hour

5.1.2 Administrative Labor

Clerical labor: $26.87 per hour

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5.2 Accessorial labor will be billed at the negotiated rate during regular time, overtime will be billed at one and a half (1.5) times the hourly rates and Sundays and Holidays at two (2) times the hourly rates. Weekend and Holiday rates will be billed at a 4 hour minimum.

6. Product Transfer between Facilities at Client Request.

6.1 SCS's standard physical inventory Fee applies to physical inventory prior to transfer.

6.2 The outbound handling charge would apply to all Product removed from the former facility

6.3 The inbound handling charge would apply to all Product received at the new facility.

6.4 If SCS arranges the transportation of the Product, Client will be charged cost plus 5%.

7. Assessorial Charges.

7.1 Communication expenses: Telephone, facsimile: at cost plus 15%.

7.2 Returns are handled at per the accessorial labor rates.

7.3 Packaging materials, office and operational supplies: SCS cost plus 15%.

7.4 Travel and related expenses: At cost.

7.5 Customer adds and changes : $10.00 per change. Not subject to initial Customer file upload.

7.6 Product adds and changes: $10.00 per change. Not subject to initial Product file upload.

8. Information Systems Development Rates.

I.T.Labor: $250.00 per hour

9. Early Termination Costs.

Early Termination Costs are listed in Exhibit D

10. Billing administration of Services

10.1 SCS will submit documented invoices under a single account number for the Services provided under this SOW to Client's designated Accounts Payable location.

10.2 Client shall pay to SCS all undisputed charges on an invoice, and any dispute as to any portion of the amount of the invoice shall be promptly resolved by the parties as commercially reasonable.

10.3 SCS billing cycle is to be structured to allow transmission of invoices as follows:

10.3.1 SCS will invoice Fixed Fees in advance on a monthly calendar basis at the beginning of each month.

10.3.2 SCS will invoice Variable Fees at the end of each month.

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EXHIBIT C - OPERATING PARAMETERS
TO SERVICE SCHEDULE NO. 3 - WAREHOUSE DISTRIBUTION SERVICES

Based on the data supplied by Client, SCS anticipates the following Operating Parameters for the Initial Term of this Schedule. Operating parameters will be periodically reviewed, and subject to the Changes in Operating Parameters or Conditions Section of the MSA.

1. Facilities:

1.1 Louisville, KY, 63,400 sq ft.

1.2 Newark, DE, 2,190 sq ft.

1.3 SCS standard security will be provided except for high security required for DEA controlled substances.

1.4 Unit of measure of throughput for the distribution Facility is a carton.

2. Service Requirements Hours:

2.1 One 8 hour shift per day, 52 weeks per year, excluding weekends.

2.2 Service requirements exclude:

- transportation for inbound or outbound Product.
- hazardous materials handling or storage.
- International shipments.

3. Inbound

3.1 Inbound units equal outbound units

3.2 Inbound Pallets

3.2.1 Louisville 15,055 per year or 60 per day. There is an average of 26 pallets per receipt/

3.2.2 Newark 877 per year or 3.5.per day. There is an average of 26 pallets per receipt.

3.3 There is 10% growth for years 2 and 3.

3.4 100% of the inbound product is full pallets with a single SKU and single lot per pallet.

3.5 There is an average of 250 cases per pallet.

3.5.1 Liquids average 100 cases per pallet (25% of volume)

3.5.2 Solids average 300 cases per pallet (75% of volume).

3.6 100% of the inbound shipments received by truckload (TL) or less-than-truckload (LTL)

3.7 100% of product is received with Advanced Ship Notice (ASN). There is 1 ASN per receipt.

3.8 All products are bar coded.

3.9 Pallet dimensions are 40" wide x 48" deep x 54" maximum height.

3.10 Visual inspection for over, short and external package damage only. Overages and shortages of DEA Controlled substances will be handled in accordance with 21CFR Part 1300.

4. Inventory and Storage

4.1 There are 550 SKUs.

4.1.1 There are 15 C-II SKUs

4.1.2 There are 20 C-III, C-IV and C-V SKUs.

4.2 The storage capacity is

4.2.1 Louisville 752 DEA C-III, C-IV and C-V controlled pallets; 5,013 non-controlled pallets

4.2.2 Newark 76 DEA C-II controlled substance pallets.

4.3 SCS will receive, warehouse and pick/pack pallets/cartons and manage inventory down to the carton level.

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5. Order Profile

5.1 All orders will be picked at the full carton or full pallet level, there is no unit picking.

5.1.1 Louisville. 82% of the cartons are picked at the full case level and 18% percent of the product is picked at the full pallet level.

5.1.2 Newark: 100% of the cartons are picked at the full case level.

5.2 100% of orders ship in the original vendor carton.

5.3 The average order, line and case volume is

5.3.1 Louisville

	UOM	Year 1	Year 2	Year 3
Daily	Orders	278	305	336
Daily	Lines	1,405	1,546	1,700
Daily	Cartons	14,936	16,430	18,073
Monthly	Orders	5,828	6,411	7,052
Monthly	Lines	29,508	32,458	35,704
Monthly	Cartons	313,665	345,031	379,535
Annual	Orders	69,940	76,934	84,627
Annual	Lines	354,090	389,499	428,449
Annual	Cartons	3,763,979	4,140,377	4,554,414

There is an average of 5.1 lines and 54 cartons per order.

5.3.2 Newark..

	UOM	Year 1	Year 2	Year 3
Daily	Orders	35	38	42
Daily	Lines	78	86	95
Daily	Cartons	871	958	1,054
Monthly	Orders	726	798	878
Monthly	Lines	1,642	1,807	1,987
Monthly	Cartons	18,285	20,114	22,125
Annual	Orders	8,707	9,578	10,535
Annual	Lines	19,709	21,680	23,848
Annual	Cartons	219,421	241,363	265,499

There is an average of 2.3 lines and 25 cartons per order.

5.4 Special labeling is not required.

5.5 The labor associated with creating outbound ASN's, cartonization and associated labels to support trading partner requirements will be charged at the Ad Hoc labor rates.

5.6 Shipping of C-II product will not occur when month end cage/vault inventories are being performed in Newark DC.

5.7 Order Cut-off Times

5.7.1 All orders received at the warehouse by 3:00 PM LWT and shipped as a small parcel will be shipped the same business day, provided however, that 80% of daily orders shall be received by 2:00 PM LWT and 100% of daily orders shall be received by 3:00 PM LWT

5.7.2 All LTL and TL orders received at the warehouse by 4:00 PM LWT will be shipped by the end of the next business day.

6. Shipping Profile

6.1 The orders will ship small parcel and TL/LTL

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6.1.1 Louisville 20% small parcel and 80% LTL or TL.

6.1.2 Newark 100% of the C-II products will ship as a small parcel.

6.2 The preferred small package carrier is UPS.

6.3 SCS will select the transportation carrier only for shipments that Client does not identify the carrier.

6.4 Multiple service levels may be used, if required by Client.

6.5 All shipping documentation will be electronically generated.

6.6 Client will provide product packaging and safeguards required for requested transportation method.

6.7 Shipments are domestic U.S. including Puerto Rico.

6.8 International Order pricing is not included but may be performed at Ad Hoc rates.

6.9 Additional activities required to meet state Pedigree regulations will be invoiced at Accessorial Labor Rates. These activities include, but are not limited to, creating outbound ASNs, special package labeling, and manual data entry.

7. Returns

7.1 Returns are undeliverable shipments.

7.2 Returned product will be held per SCS SOPs pending disposition instructions by Client.

8. Customer Support.

8.1 Hours of operation are 9am - 5:30pm EST

8.2 100% of DEA non-C-II controlled substance product orders will arrive via EDI into the OMS system.

8.3 100% of DEA C-II controlled substance product orders to be entered manually into the OMS system

8.4 Approximately 2% of received EDI order lines will require manual intervention.

8.5 There will be approximately 1,000 ship-to locations.

8.6 SCS is listed as a Central Reporter with the DEA and will perform all necessary monthly or quarterly state and/or DEA ARCOS reporting regarding all transactions processed for each warehouse.

8.7 Samples distribution is not included.

8.8 Both the ship-to locations and the SKUs will be loaded systematically into the WMS system.

8.9 SCS will train twenty users on WMS inquiry.

8.10 SCS will perform licensure verification for all orders.

8.11 SCS and Client will mediate any orders that are in error in the system.

8.12 Standard Cognos reports will be provided.

9. Information System

9.1 SCS will use an Order Management System (OMS) for order processing and a WMS to manage warehouse receiving, storage, picking, packing, shipping, and inventory.

9.2 Client does not require any customization to the system. Prior to any necessary customization, modification, or enhancement to the system, Client will approve in writing both the functional design change and cost of the change.

9.3 The WMS accommodates two warehouses for Client. Additional locations will incur appropriate implementation costs.

9.4 The Food & Drug Administration regulates Client products. The WMS is required to perform necessary lot/serial tracking.

9.5 One Client ID will be established for trade distribution. Inventory for all business units (PurePac, Amide, Alpharma and Branded/Label) will be maintained in one Client ID.

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9.6 The inventory parts master will begin with approximately 550 SKUs. Client does not re-utilize stock numbers.

9.7 The inventory parts master will be loaded automatically using the SCS standard Excel spreadsheet format. Client will provide a clean inventory parts master file. Additions to the inventory parts master will be performed manually. Extensive changes or additions to the inventory parts master may be communicated electronically at an additional cost.

9.8 Inventory rotation strategy is First Expire, First Out (FEFO)

9.9 Lot tracking is required.

9.10 The SCS WMS will be the inventory of record. SCS will transmit inventory balances and provide an inventory report by SKU to Client on a daily basis.

9.11 Product received from Client suppliers or manufacturing facilities will be bar-coded and clearly marked with the Client part number. Client will provide copies of labels prior to implementation.

9.12 A customer master will be maintained for customer licensure verification.

9.13 The customer master consists of approximately 1000 records and will be loaded automatically using the SCS standard Excel spreadsheet format. Client will provide a clean customer master file. Additions to the customer master will be performed manually. Extensive changes or additions to the customer master may be communicated electronically at an additional cost.

9.14 Each ship-to location may have more than one customer / account number for Client which is unique to each Client business unit. Therefore, one ship-to location may be established up to four times in the customer master for the same address.

9.15 The Client customer number sequence will be used and is within the OMS parameters. Client will pass the customer number for all electronic orders.

9.16 Client will provide electronic EDI Advanced Ship Notifications (ASN) for all orders shipped to the warehouse prior to receipt of goods and will include SKU level detail.

9.17 Client does require inbound auditing for damage, shipment overage, and shipment shortage. Discrepant or damaged items will be placed on a "hold" status until Client provides further disposition instructions.

9.18 Client may require some product to be received into quarantine upon receipt. Auto disposition functionality may be utilized. However, the auto disposition can not be set in the system by the inbound ASN and the disposition status must be set by warehouse operations prior to receipt of goods for a particular SKU or SKU/lot combination.

9.19 Cycle counts will be executed based on WI requirements.

9.20 The following standard electronic transactions are included in pricing between Client' host system and SCS. Additional or customized transactions will incur appropriate costs.

Client to SCS

ASN

Sales Order

Inventory Adjustment

SCS to Client

Inventory Snapshot

Receiving Advice

Warehouse Shipping Confirmation

Warehouse Inventory Adjustment

9.21 Electronic interfaces to and from SCS will originate and terminate with a single Client host system.

9.22 Data will be exchanged with Client' host system via EDI X.12 format via AS2.

9.23 Client will utilize SCS file formats for transactions to/from the OMS. Six (6) total weeks of unit, integration testing and acceptance testing (2 weeks a piece) is included in pricing.

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9.24 Client will provide test plan and test script.

9.25 A separate test environment is not included in pricing. If a separate test environment is required, additional hardware and labor costs for configuration and maintenance for a separate test environment will be incurred

9.26 Trading Partner integration is included for the outbound Advance Shipment Notification (ASN) 856 for the following customers

McKesson	Walgreen	Kinray	Capital Wholesale
Cardinal	Wal-mart	Dik Drug	Target
Amerisource	Morris Dickson	Rite Aid	K-mart.

9.27 SCS will pass all ASN's directly to the trading partner via the Value Added Network (VAN) with the exception of Walmart. Walmart's ASN's will be passed to Client to send to the customer. Walmart does not integrate with 3PL's.

9.28 Client is responsible for their VAN charges.

9.29 Client Trade Relations Manager will provide contact information and ASN specifications for partners not currently serviced by SCS.

9.30 Trading partners that do not respond to test requests in a timely manner will be escalated to the Client Trade Relations Manager for resolution. Trading partners that are not certified may fine Client for non-compliance. Client is responsible for any fines the trading partner's impose..

9.31 No other customer / trading partner is included. Additional partners or transaction sets will incur additional costs.

9.32 All orders will be received electronically from Client host system with the exception of CII controlled substance orders.

9.33 CII orders will have the narcotic blanks mailed to the distribution center for manual entry. Electronic CII order processing is not included.

9.34 Standard order validation rules will apply. Orders that do not pass validation criteria will go on hold until resolved.

9.35 Part number substitutions/alternative parts will be managed by Client.

9.36 The lot number will be automatically assigned by the WMS in most cases. Client may pass the lot and hold status to override the normal FEFO rotation for some orders based on customer requests.

9.37 Co-mingling of like SKU's is permitted in outbound shipments. Since Client has a diverse SKU profile, Client will pass controlled substances on separate orders from non-controlled items.

9.38 Order cancellations are handled manually.

9.39 All orders will use the SCS carrier codes.

9.40 Packing instructions may be entered on the sales order and will print on the packing list.

9.41 Order consolidation is not included.

9.42 Client does not require SCS to perform product kitting.

9.43 Co-mingling of SKU's is permitted in outbound shipments.

9.44 A standard packing list with a black and white Client logo is included. The pack list does not vary by business unit. Customization of the packing list may incur additional costs.

9.45 The default outbound parcel carrier and service level is UPS ground only for shipments that Client does not identify the carrier and the service level

9.46 Removed .since it is covered in Shipping profile 6.3

9.47 100% of orders are domestic with a small amount of orders shipping to Puerto Rico.

9.48 The WMS interfaces with UPS Worldship and will auto-populate the customer name, address, carrier and service level to the shipping station. Bill of Lading or tracking numbers from other carriers will be manually entered by operations.

9.49 Bill of ladings for TL/LTL orders will be created using Express Works. Express Works is not integrated to the WMS. Client will provide necessary data to create Bill of Lading.

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9.50 Standard shipping labels is available for outbound shipments. Shipping label customization may incur additional costs.

9.51 The following trading partners require outer shipping carton retail labeling and are included in the scope: McKesson, Cardinal, Amerisource, Walgreens, Wal-mart, Target & K-Mart. New partners with outer carton retail label or custom label requirements will incur additional cost.

9.52 Client will provide the outer shipping carton retail label specifications for any partner not currently serviced by SCS.

9.53 Any partner that is serviced today by SCS will accept the current outer shipping carton retail compliance label format with no changes.

9.54 Client Trade Relations Manager will act as a liaison to the trading partner for label certification.

9.55 Client does not require SCS to place retail-compliant labels on products.

9.56 Standard COGNOS reports are available by email to Client within specified pricing. Report customization will incur additional costs.

9.57 Client does require return functionality. A standard return module is included.

9.58 Electronic / system driven E-Pedigree compliance is not included at this time. Additional costs will apply.

9.59 Accounts Receivable, Chargeback processing and invoicing is not included.

9.60 System OMS visibility is included for 20 Client named users. Training will be conducted by Client Services.

9.61 A Frame Relay Circuit will be used to access the OMS for visibility. The circuit will take 6 – 8 weeks to install. Expedited install will incur additional costs.

9.62 Invoicing of services to Client is manual and in U. S. dollars.

9.63 IT hardware such as workstations, printers, scanners, etc. is included in pricing.

IT Implementation

9.64 IT pricing is based on documented assumptions and is directional until a detailed scope of work is defined and agreed-upon by Client and SCS.

9.65 A detailed design meeting will be held upon award of business. Additional requirements identified may impact cost and timeline for delivery of IT components. Client will provide written approval for any changes in scope that impact cost and timeline as discovered at detail design.

9.66 Systems will be operational within approximately 16 weeks of validated business requirements; estimate is based on mutual resource coordination.

9.67 SCS and Client will agree upon final timeline for deliver of systems after the detailed design meeting and business requirements validation.

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EXHIBIT D – TERMINATION FEES
TO SERVICE SCHEDULE NO. 3 - WAREHOUSE DISTRIBUTION SERVICES

In accordance with section 2.2 of Service Schedule No.3, the Client is required to pay the following Termination Costs:

Feb-07	$853,602	Feb-08	$727,082	Feb-09	$596,436
Mar-07	$844,061	Mar-08	$715,023	Mar-09	$584,619
Apr-07	$838,553	Apr-08	$702,964	Apr-09	$572,328
May-07	$826,494	May-08	$690,906	May-09	$560,036
Jun-07	$814,435	Jun-08	$678,846	Jun-09	$547,745
Jul-07	$802,376	Jul-08	$666,787	Jul-09	$535,453
Aug-07	$790,317	Aug-08	$654,728	Aug-09	$523,162
Sep-07	$778,258	Sep-08	$642,669	Sep-09	$510,870
Oct-07	$766,200	Oct-08	$631,477	Oct-09	$498,579
Nov-07	$754,354	Nov-08	$620,527	Nov-09	$486,287
Dec-07	$745,263	Dec-08	$612,412	Dec-09	$327,896
Jan-08	$736,172	Jan-09	$604,298	Jan-10	$169,506

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EXHIBIT E – PRODUCT LIST
TO SERVICE SCHEDULE NO. 3 - WAREHOUSE DISTRIBUTION SERVICES

DEA Controlled Substances C-II			
Hydromorphone	Meperidine	Oxycodone and Oxycodone APAP	Morphine Sulfate
Mepergan Fortis			
DEA Controlled Substances C-III, C-IV and C-V			
Alprazolam and Alprazolam Er	Amphet Xr	Apap Codeine	Butab w/Aspir & Caff
Carisoprodol/Aspirin & Codeine	Clonazepam	Guaifenesin	Hydrocodone Bitart & Homa Methyl
Hydromet Syrup	Hydroxyzine	Lorazepam	Oxazepam
Paregoric	Pentazocine & Apap	Pentazocine & Naloxone	Phenobarbital
Phentermine	Prometh Vc W/Cod	Prometh W/Cod	Temazepam
Midrin	Fiorinal	Soma compound with Codeine	Brontex
Hycodan	Hycodan syrup		
Prescription and non-Prescription Pharmaceuticals			
A & D Ointment	Acetasol Hc	Acyclovir Susp	Albuterol Sulf
Allergy Cr w/Zinc	Amantadine	Amigesic (Salsalate)	Apap Drops
Aveeno Hydro/Aloe	Baci Zinc Oint	Bellamine-S	Beta Augment
Beta Dip	Beta Val	Betaxolol	Buspirone
C.M.T.	Carbamazepine	Carbi/Levo	Carisoprodol
Chlordiazepoxide w/Clidinium Bromide	Chlorzoxazone	Cilostazol	Clonidine
Clonidine Hcl	Clotrim Beta Dip	Clotrimazole	Constulose
Cyclobenzaprine	Cyproheptadine Syr	Dantrolene Sodium	Dbl Anti Oint
Dbl w/Pramoxine	Desipramine Hcl	Dexchlorpheniramine Maleate	Diaper Rash Ointment
Diclofenac Dr	Diclofenac Er	Diltiazem	Diltiazem Er
Diltiazem Hcl	Dipyridamole	Enulose	Etodolac
Feverall Supps	Gabapentin	Glyb/Met	Glyb/Metfrm
Glyburide (Micronized)	Guanfacine	Halobetasol Ot	Hctz
Hem Hc Supp	Hydro	Hydro Aloe	Hydro Rx
Hydrochlorothz	Hydroxyzine	Hyoscyamine	Ibpro Otc
Ibuprofen Otc	Ibuprofen Rx	Indapamide	Isosorb. Mono
Lactulose	Lovastatin	Loxapine Succinate	Lubricating Jelly
Meclizine	Meloxicam	Metformin Er	Methenamine Mandelate
Metoclopramide	Micon Cr	Micon Vag	Miconazole Supp
Miconazole Vag Cr	Minoxidil	Mirtazapine	Monistat Intimate Cr
Multi Vita-Bets w/Fluoride	Multi-Ret Folic	M-Zole 3	Naltrexone
Nifedipine	Nystatin	Nystatin Susp	Nystn/Triam Acet
Orphenadrine Citrate	Paroxetine	Permethrin	Phenazopyridine
Phenytoin	Pilocarpine	Prenatal Formula	Prenatal Plus
Prenatal Rx New Formula	Prometh Vc Plain	Prometh w/Dm	Propylthiouracil
Quinaretic	Ranitidine Pts	Rifampin	Sertraline Hcl
Sodium Fluoride	Spironola	Spironolac	Spironolactone
Sulfatrim Ped	Terbinafine	Tizanidine	Tolnaftate Cr
Tretinoin Cr	Tri Vita Bets w/Fluoride	Triam Acet	Trimethobenzamide
Trimipramine Maleate	Triple Anti Ms Oint	Triple Anti Oint	Triple w/Pram
Triple w/Pramoxine	Ursodiol	Vitacon Forte	Vitaplex
Vitaplex Plus	Zinc Oxide Ointment	Humibid DM	Diprosone
Valisone	Tussi	Sinemet	Soma compound
Soma	Trilisate	Klonopin	Lotrisone
Gyne-Lotrimin	Cardura	Aquatab	Hydrodiunik

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Cortaid	Cephulac	Ativan	New Entex LA
Talacen	Zanaflex	Kenalog	Yocon
Infants Tylenol drops			

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EXHIBIT F – KEY PERFORMANCE INDICATORS TO SERVICE SCHEDULE NO. 3 - WAREHOUSE DISTRIBUTION SERVICES

1. A Risk/Reward Program including KPIs will be mutually agreed upon by both Parties after the first 90 days.

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